

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rebecca Jacobson	Team: Squad #14	CCRB Case #: 201507712	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 09/10/2015 8:22 PM	Location of Incident: In the parking lot of Checkers at 13-05 Beach Channel Drive	18 Mo. SOL 3/10/2017	Precinct: 101		
Date/Time CV Reported Thu, 09/10/2015 8:50 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 09/10/2015 8:50 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Joshua Hammer	02323	945910	QS GANG

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Donnell Powell	4213	930975	QS GANG

Officer(s)	Allegation	Investigator Recommendation
A . SGT Joshua Hammer	Abuse: Sgt. Joshua Hammer stopped the vehicle in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . SGT Joshua Hammer	Abuse: Sgt. Joshua Hammer refused to provide his name and shield number to § 87(2)(b)	B . Unsubstantiated

Case Summary

On September 10, 2015, § 87(2)(b) filed this complaint via phone with the CCRB.

On September 10, 2015, at approximately 8:22 p.m., in the parking lot of the Checkers restaurant at 13-05 Beach Channel Drive in Queens, § 87(2)(b) was stopped by Sgt. Joshua Hammer of Gang Squad Queens South (**Allegations A**). During the stop, § 87(2)(b) allegedly asked to see Sgt. Hammer's shield, to which Sgt. Hammer responded "For what?" (**Allegation B**).

§ 87(2)(b) provided the investigation with a brief video of the incident (BR 10). TARU footage of the incident location was also obtained, but found to not be relevant.

Mediation, Civil and Criminal Histories

§ 87(2)(b) was offered mediation but rejected it § 87(2)(b)

On December 8, 2015, a notice of claim inquiry was submitted. It will be added to the case file upon receipt. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has previously filed six CCRB complaints in the past 3 years. § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- Sgt. Hammer has been a member of the NYPD for seven years, has had 22 previous CCRB allegations involving eight cases, with no substantiated allegations and five allegations involving two cases being mediated. § 87(2)(g)
§ 87(2)(g)
- Det. Powell has been a member of the NYPD for 13 years, has had eight previous CCRB allegations involving four cases, with three substantiated allegations. In Case 200900520, allegations of frisk, search of person, and stop were substantiated with charges and Det. Powell received an NYPD penalty of instructions. § 87(2)(g)
§ 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) alleged that he asked the officer who came to his driver's side window to see his identification and shield. After asking to see the officer's shield, his partner, who was standing on the passenger's side of the car, pulled his shield out from underneath his shirt. § 87(2)(b) described the officer on his driver's side as a white male in his mid-30s to mid-40s, standing 5'6"-5'7" tall, with dirty blond hair and a clean cut face dressed in plainclothes. § 87(2)(b) described the officer on his passenger's side as a male who could have been Hispanic, Asian, or black, but a little lighter than § 87(2)(b) in his late-30s to early-40s, standing 5'11"-6'0" tall, with a bald spot and a goatee, dressed in plainclothes (BR 04). Both Sgt. Hammer and Det. Powell described themselves as the officer who approached § 87(2)(b)'s driver's side door and

both denied § 87(2)(b) asking for identification from any officer. Sgt. Hammer is a § 87(2)(b) old white male, standing 5'9" tall, with light brown hair and Det. Powell is a § 87(2)(b) old black male, standing 5'9" tall, with black hair. Although the video footage of the incident does not capture any moment in which § 87(2)(b) asks for an officer's identification, it displays Sgt. Hammer as being in front of § 87(2)(b)'s window. § 87(2)(g)

Allegation A –Abuse of Authority: Sgt. Joshua Hammer stopped the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that Sgt. Hammer § 87(2)(b)'s car. § 87(2)(g)

According to § 87(2)(b) he had been legally parked in a parking spot, with his car ignition off and his keys in his lap, for approximately five to ten minutes when he heard a car screech and a dark colored Hyundai pulled up behind his car and put on its police lights. In the car with § 87(2)(b) were his girlfriend, § 87(2)(b) and her two children. § 87(2)(b) had been talking to his father, § 87(2)(b) and his uncle, § 87(2)(b) through his open driver's side window. When § 87(2)(b) had pulled into the Checkers parking lot, he had coincidentally seen his father and uncle in the parking lot and begun talking to them. Two officers, identified through investigation as Sgt. Hammer and Det. Powell, exited their vehicle and approached § 87(2)(b)'s vehicle. Sgt. Hammer approached § 87(2)(b)'s side of the car, driver's side, and Det. Powell approached the passenger's side. Sgt. Hammer asked § 87(2)(b) for his license and registration. § 87(2)(b) continually asked Sgt. Hammer what he was being stopped for throughout the incident. At the end of the incident, Sgt. Hammer informed him that he had been stopped because his seatbelt was not on.

§ 87(2)(b) stated that she was driving with § 87(2)(b) when they saw § 87(2)(b)'s father down the road riding a bike. They pulled into the parking lot of Checkers to wait for his father. § 87(2)(b) and § 87(2)(b) were talking to § 87(2)(b)'s father for approximately two minutes when a black unmarked car pulled up behind § 87(2)(b)'s vehicle and then placed its lights on. Sgt. Hammer approached § 87(2)(b) and asked for his license and registration. § 87(2)(b) was primarily speaking with Det. Powell and did not recall what reason the officers gave for stopping them. § 87(2)(b) stated that he was riding his bike with his brother, § 87(2)(b) § 87(2)(b) when he saw his nephew, § 87(2)(b) driving. § 87(2)(b) pulled over into the Checkers parking lot and § 87(2)(b) and § 87(2)(b) § 87(2)(b) biked to the Checkers parking lot as well. § 87(2)(b) was talking to § 87(2)(b) by his door, the driver's door, in the Checkers parking lot, during which time § 87(2)(b)'s car was off. Less than five minutes later, a dark gray unmarked police car drove into the parking lot and Sgt. Hammer and Det. Powell got out of the car and approached § 87(2)(b)'s vehicle. Sgt. Hammer went to the driver's side and Det. Powell went to the passenger's side. Sgt. Hammer began asking § 87(2)(b) questions and asked for his license and registration. Sgt. Hammer told § 87(2)(b) that he did not have his seatbelt on, this was the only reason the officers gave for stopping § 87(2)(b) (BR 05-06). § 87(2)(b) § 87(2)(b) did not provide a statement.

Sgt. Hammer testified that he initially observed § 87(2)(b) at the corner of McBride Avenue and Mott Avenue. Sgt. Hammer was parked on McBride Avenue, approximately 25 feet away, and observed § 87(2)(b) stop his car, get out and talk to somebody on the street, and then get back in and resume driving. When § 87(2)(b) got back in his car, Sgt. Hammer observed that § 87(2)(b) was not wearing his seatbelt. Sgt. Hammer, who was driving, commented to Det. Powell that he

was going to stop § 87(2)(b) and began to follow him; he did not engage the police lights during this time. § 87(2)(b) turned into a Checkers parking lot about a quarter of a mile from where Sgt. Hammer originally observed him and Sgt. Hammer followed him into the parking lot and immediately engaged his lights. Sgt. Hammer stated it was his decision to stop § 87(2)(b) and he was stopping him for the sole purpose of not wearing a seatbelt. At the end of the incident, Sgt. Hammer informed § 87(2)(b) that he had stopped him for not wearing a seatbelt (BR 07).

Det. Powell stated that the officers were driving approximately three car lengths behind § 87(2)(b)'s car when he first observed it at McBride Avenue and Mott Avenue; his attention was drawn to § 87(2)(b)'s car because it was driving slowly through a drug prone location and was the only car in the area. § 87(2)(b) did not stop his car or interact with anyone on the street. The officers were coincidentally driving in the same direction as § 87(2)(b) and Det. Powell then saw him turn into the parking lot of a Checkers and observed two men on bikes approached the front passenger's side window of the vehicle. Det. Powell and Sgt. Hammer were stopped at a traffic light across the street on Beach Channel Drive, approximately 25 feet away, when Det. Powell observed this. Det. Powell then observed one of the individuals on bikes lean inside the vehicle and observed a hand movement, which he described as similar to continuous set of handshakes, approximately 4-5 handshakes, and estimated it lasted for 10 seconds. Det. Powell believed these hand movements could have possibly been a drug transaction. Both Det. Powell and Sgt. Hammer had observed these hand movements and both made the decision to stop § 87(2)(b). The only reason Det. Powell decided to stop § 87(2)(b) was to investigate the hand movements he had observed. Det. Powell did not remember whether or not § 87(2)(b) was wearing his seatbelt and did not recall if there was ever a conversation about § 87(2)(b) wearing his seatbelt. Det. Powell did not issue § 87(2)(b) any warnings about wearing his seatbelt and did not remember if Sgt. Hammer issued him any (BR 08).

In video obtained by the investigation, Sgt. Hammer can be seen approaching § 87(2)(b)'s window. Sgt. Hammer asks § 87(2)(b) "You know you're required to wear a seatbelt when you operate this car?" § 87(2)(b) then responds, "I was, I was..." and another voice cuts in saying, "He just took it off." Later in the video, Sgt. Hammer can be heard telling § 87(2)(b) "Sir, I'm telling you why I stopped you, you're required to wear your seatbelt when you drive a car on the street." (BR 09).



2015-12-09_16-17-31.mp4

Officers can stop motorists observed committing traffic violations as a pretext to investigate more serious crimes. See Whren v. United States, 517 U.S. 806 (1996) (BR 11); People v. Robinson, 97 N.Y.2d 341 (2001) (BR 12).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B – Abuse of Authority: Sgt. Joshua Hammer refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) alleged that after Sgt. Hammer asked for his ID, he asked Sgt. Hammer to see his ID. § 87(2)(b) then gave § 87(2)(b) his registration and license and allegedly said to Sgt. Hammer, “Excuse me, let me see your badge.” Sgt. Hammer allegedly replied, “For what?” Det. Powell, who was standing on the other side of the car, then pulled his shield out from underneath his shirt.

According to § 87(2)(b) § 87(2)(b) asked for both officers’ name and shield numbers, at which point Det. Powell took his shield out and was wearing it around his neck. § 87(2)(b) did not allege to having heard any conversation about identification, names, or shield numbers between § 87(2)(b) and the officers.

Both Sgt. Hammer and Det. Powell stated that had their shields displayed around their neck during the incident, Sgt. Hammer stated that he will sometimes wear it under his shirt but will pull it out, and Sgt. Hammer denied § 87(2)(b) asking for any officer’s identification or shield.

Video footage from the incident displays Sgt. Hammer at § 87(2)(b)’s window without his shield visibly displayed.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date